

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Inessa Abayev	Team: Team # 8	CCRB Case #: 201002715	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 02/26/2010 8:40 PM	Location of Incident: § 87(2)(b)	Precinct: 62	18 Mo. SOL 8/26/2011	EO SOL 8/26/2011	
Date/Time CV Reported Fri, 02/26/2010 9:02 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 02/26/2010 9:02 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. Officers			062 PCT
2. POM Marcos Rodriguez	04615	942458	062 PCT

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Abuse: Officers stopped § 87(2)(b) and an individual.	§ 87(2)(b)
B. Officers	Abuse: Officers refused to provide their names and shield numbers to § 87(2)(b)	§ 87(2)(b)
C. Officers	Abuse: Officers threatened to arrest § 87(2)(b) and an individual.	§ 87(2)(b)
@POM Marcos Rodriguez	Abuse: Officers threatened to arrest § 87(2)(b) and an individual.	§ 87(2)(b)
@POM Marcos Rodriguez	Abuse: Officer Rodriguez stopped § 87(2)(b) and an individual.	§ 87(2)(b)
@POM Marcos Rodriguez	Abuse: Officers refused to provide their names and shield numbers to § 87(2)(b)	§ 87(2)(b)

Case Summary

§ 87(2)(b) called the CCRB on February 26, 2010, and left a message on the Call Processing System.

At about 8:40 p.m. on February 26, 2010, § 87(2)(b) and a friend were near their workplace at § 87(2)(b) in Brooklyn. An unmarked vehicle drove past them and reversed. Three officers exited the vehicle. PO1 was a white male, 6'3" to 6'4" tall, weighed about 230 pounds, and was in plainclothes. His last name was Brava and his shield number was 5635. PO2 and PO3 were not identified. The officers stopped § 87(2)(b) and his friend (**Allegation A**) and asked for their IDs. When § 87(2)(b) and his friend asked why, the officers explained that they had received a call regarding a suspicious person. § 87(2)(b) requested the officers' shield numbers and IDs, however the officers were "belligerent about it" and threatened § 87(2)(b) and his friend with "incarceration" (**Allegations B and C**).

A GOAT search showed that the incident location falls within the 62nd Precinct. According to CTS, there are no officers with the last name "Brava" or shield number 5635 in the 62nd Precinct, or close variations of either the name or shield number within that Precinct. Three male officers are assigned to shield number 5635, however none operate within the 62nd Precinct. § 87(2)(b) did not provide any information regarding PO2 and PO3. In a SPRINT that may be related to this case, five Hispanic males had an interaction with officers from the 62nd Precinct. However, it is unclear if that particular SPRINT is related to § 87(2)(b)'s complaint. A Stop and Frisk report confirmed that § 87(2)(b) was stopped by PO Marcos Rodriguez, shield number 04615, however no other individual was stopped with him. A search for a possible stop and frisk report for § 87(2)(b) unidentified friend was unsuccessful.

§ 87(2)(g)

The undersigned investigator called § 87(2)(b)'s phone number five times between March 2 and March 18, 2010. The investigator reached § 87(2)(b) during one of those attempts but he was unable to discuss the case at the time. Two of the calls resulted in voicemail messages, and two were fruitless as his phone mailbox system was full and did not accept additional messages. § 87(2)(b) was also mailed two please call letters on March 2 and March 12, 2010. § 87(2)(g)

Team: 8

Investigator: _____
Signature Inessa Abayev Print April 12, 2010 Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____

Title/Signature

Print

Date